

Durably Sustainability Scan

Methodology for sustainability-claim risk screening based on EmpCo / Directive (EU) 2024/825 and Regulation (EU) 2024/3015 on products made with forced labour.

The scan is a pre-assessment tool for sustainability communication. It identifies material problematic claim signals, evidence gaps and negative external stakeholder perceptions. It is not legal advice and does not make a definitive finding of greenwashing, social washing or legal non-compliance.

1. Purpose and regulatory basis

The Sustainability Scan reviews company websites or uploaded documents to identify sustainability claims that may require stronger substantiation before they are used externally. The assessment is intentionally claim-specific. It does not score every ESG statement, every mention of sustainability or every neutral reference to suppliers. Only material problematic claim signals are retained in the claim-analysis section.

The green-claim lens is based on the EU consumer-protection framework, in particular Directive (EU) 2024/825 on empowering consumers for the green transition (EmpCo), which amends the Unfair Commercial Practices Directive. EmpCo is most relevant for consumer-facing commercial communication, including product pages, advertising, packaging text, labels and other market-facing statements.

The social-claim lens focuses on high-sensitivity statements that may imply assurance, control or full coverage over human rights, labour practices, supplier conduct, product traceability or forced-labour risks. Regulation (EU) 2024/3015 on products made with forced labour is used as the specific product and supply-chain lens for forced-labour, modern-slavery, traceability, import/export or supplier assurance wording.

2. What is retained as a material claim signal

Dimension	Retained in the claim analysis	Normally not retained as problematic by itself
Green / EmpCo	Generic environmental claims such as eco-friendly or planet friendly; product-level carbon/climate-neutrality or offsetting wording; self-declared sustainability labels or badges; vague comparative claims such as greener than; future environmental-performance claims such as net zero by a target year; legal compliance presented as a green advantage; strong visual indicators such as eco badges or leaf icons where they imply environmental benefit.	Generic ESG context, page headings, sustainability-report sections, neutral descriptions of environmental programmes, or words such as sustainability without a specific market-facing environmental claim.
Social / forced-labour lens	Forced-labour-free, child-labour-free or modern-slavery-free claims; all-supplier audited/certified/compliant claims; fully traceable supply-chain claims; broad human-rights, living-wage or labour-rights assurance claims; absolute worker-safety, equality or inclusion guarantees.	Neutral references such as working with suppliers, backing British suppliers, supporting communities, employee information, supplier portals or general statements that do not imply assurance, full coverage, certification, traceability, due diligence or legal-risk controls.

3. EmpCo blacklisted-practice indicators

The scan gives priority to claim patterns that map to EmpCo blacklisted-practice indicators or high-sensitivity claim areas. A retained indicator does not automatically mean that the claim is unlawful. It means that the claim should be reviewed against the legal conditions, supporting evidence and communication context.

EmpCo indicator	How the scan treats it	Evidence expected
Generic environmental claim	Flagged where broad wording is used in market-facing communication without obvious same-medium specification.	Recognised excellent environmental performance or clear and prominent specification on the same medium, plus objective evidence.
Offset-based climate neutrality	Flagged where a product or service appears to be carbon neutral, climate neutral, carbon positive or reduced climate impact based on compensation/offsetting.	Separation of actual emission reductions and offsets, GHG scopes, lifecycle coverage, baseline, residual emissions and methodology.
Sustainability labels / badges	Flagged where the wording or visual presentation may look like a label, trust mark, green badge or certification.	Public authority label or independent, transparent certification scheme, criteria, audit basis, scope and validity period.

EmpCo indicator	How the scan treats it	Evidence expected
Comparative environmental claims	Flagged where the company claims to be greener, better, lower impact or lower emissions than an alternative.	Comparator, comparison method, equivalent basis, products/suppliers compared, data date and update mechanism.
Future environmental performance	Flagged where net-zero or future climate/environmental performance is claimed without clear plan evidence in the retained passage.	Objective, public and verifiable commitments, milestones, resources, governance, progress reporting and independent review.
Legal requirements as benefits	Flagged where legal compliance is presented as a distinctive sustainability benefit.	Clear separation between legal compliance and voluntary sustainability improvement.

4. Forced Labour Regulation and social-claim lens

Regulation (EU) 2024/3015 prohibits placing, making available on the EU market, or exporting products made with forced labour. The scan uses this regulation as a high-priority lens when company wording refers to forced labour, modern slavery, child labour, product traceability, import/export controls, supplier traceability or equivalent assurance wording.

The tool does not infer forced-labour risk merely from the existence of suppliers. It looks for statements that imply a level of control or assurance. For example, backing British suppliers or working with suppliers is normally not a problematic claim. By contrast, all suppliers are audited, forced-labour free products, fully traceable supply chain or all suppliers comply with our code may create a stronger evidence burden.

Social claim type	Why it matters	Evidence expected
Forced-labour-free or modern-slavery-free wording	May imply product or supply-chain assurance against forced labour.	Product and supplier traceability, risk assessment by geography/product, mitigation, remediation and withdrawal/customs response readiness.
All-supplier audit/certification/compliance claims	May overstate supplier coverage or control.	Supplier-tier coverage, audit methodology, worker voice, findings, corrective actions and closure rates.
Human-rights or living-wage assurance claims	May imply outcomes across workforce or value chain.	Salient-risk assessment, due-diligence process, grievance channels, remedy, scope and limitations.
Absolute safety/equality guarantees	May overstate performance outcomes.	KPI evidence, coverage, baseline, reporting period, exclusions and corrective action.

5. Score calculation

The scan generates three scores: a Green score, a Social score and a Global score. Scores are risk-intensity indicators from 0 to 100. A higher score means that the retained problematic claim signals, evidence gaps and negative stakeholder context create more review urgency. The score is not a legal finding.

The calculation is deliberately conservative. A single problematic word or one isolated claim should normally not produce an extremely high score. High scores require a convergence of factors: material claim wording, weak substantiation, consumer-facing or product/supply-chain context, direct EmpCo or Forced Labour relevance and/or retained negative external stakeholder signals.

Score component	Typical weight	Meaning
Material problematic claim wording	about 30%	Strength of the retained claim signal. Direct EmpCo indicators and forced-labour/supplier assurance wording carry more weight than broad responsible-business wording.
Evidence-gap risk	about 30%	Whether the source provides scope, methodology, data, period, limitations, verification and governance evidence close to the claim.
Negative external stakeholder context	about 25%	Only retained negative external stakeholder perceptions are counted: regulator, court, NGO, union, complaint, investigation or clearly critical media signals. Company documents and positive news are excluded.
Sector / channel sensitivity	about 15%	Sector exposure and whether the claim is consumer-facing, investor/reporting, internal or mixed. EmpCo relevance is strongest for B2C commercial communication.

6. Conservative caps and interpretation

To avoid overstating risk, the model applies conservative interpretive caps. Where there is only one retained claim and no negative external stakeholder signal, the score normally remains in the low-to-medium range even if the claim requires review. Higher scores require additional factors such as multiple material claims, a large evidence gap, direct regulatory relevance or negative external stakeholder signals.

Score band	Interpretation
0-29 Low	No material problematic claim retained or only weak claim-review signals. Standard evidence discipline remains recommended.
30-49 Medium-low	One or limited material claim signals; wording should be checked and evidence attached before reuse.
50-69 Medium / elevated	Material claim signal with meaningful evidence gap, regulatory relevance or sector/channel sensitivity. Review by legal/compliance or sustainability owner is recommended.
70-84 High	Multiple or serious claim signals with weak substantiation and/or negative stakeholder context. Urgent review before publication or reuse.
85-100 Very high	Strong convergence of serious claim signals, major evidence gaps and retained negative external stakeholder context. Escalation required.

7. External stakeholder signals

External public-source signals are used only as context that may contradict, qualify or increase the urgency of a retained claim. The section is intentionally narrow. It excludes company-owned websites, annual reports, sustainability reports, supplier codes, policies, press releases, corporate news, awards, partnerships and positive or neutral announcements.

The retained source types are negative stakeholder perceptions: regulator actions, court cases, investigations, fines, complaints, NGO or union concerns, consumer-authority actions, lawsuits, allegations, criticism, boycotts, protests or clearly negative press. These signals are review inputs and require manual verification.

8. Source and exact detected wording

The company report shows only retained material problematic claim signals. Each claim card is structured as follows: source page or document; exact retained wording; trigger phrase(s); reason for retention; suggested improvement. If no material claim is retained, the section says so explicitly. This avoids mixing isolated words, navigation labels and long unstructured excerpts.

The scanner is not a pure keyword search. It uses keywords as entry points, but the passage is retained only when the surrounding wording indicates a material claim-risk pattern. Neutral wording is filtered out. Example: backing British suppliers is normally not retained; all suppliers are audited or forced-labour free products would be retained.

9. Visual and icon review

Where available in the page HTML, the scan reviews alt text, image names, class names, IDs and labels for visual claim cues such as eco badge, green badge, leaf icon, planet icon, recycled badge or sustainability badge. Visual cues are reviewed only where they appear to imply a sustainability benefit or label-like trust mark.

10. Limitations

The Sustainability Scan is a first-pass screening tool. It does not replace legal advice, formal assurance, third-party certification, product testing, lifecycle assessment or human-rights due diligence. Website crawling and external search depend on public availability, site accessibility, search-provider results and snippets. Results should be verified manually before publication, commercial use or stakeholder communication.

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